



File No.: EXP202211782

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the claimant) exercised the right of Access to their medical history against CLÍNICA DENTAL ALBUFERA, S.L. (hereinafter, the respondent) without their request receiving the legally established response. Through a burofax dated September 27, 2022, the claimant requested access to the complete copy of their medical history, without receiving a response. They provide proof of admission of the burofax dated September 29, 2022.

After analyzing all the documentation presented, this Agency decided to dismiss the complaint:

"...In response to the transfer and information actions carried out, a letter from the respondent has been received in this Agency in which, for what is relevant here, it states the following: After the transfer of the complaint carried out by the AEPD, on 12/19/22 a copy of the medical histories requested by the claimant was sent via burofax to the address indicated for notification purposes. Once the reasons presented by the respondent, which are in the file, were analyzed, this Agency considers that the requested right has been addressed. For this reason, in accordance with the provisions of Article 65 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data AGREES not to admit the complaint for processing..."

The claimant, disagreeing with the resolution, submits a request for reconsideration which is resolved favorably and gives rise to the current complaint with the following conclusion:

"...Regarding access to the complete medical history of the appellant, the respondent stated in the response to the information request that they had already sent the requested medical history. However, it has not been proven that the respondent has responded to the appellant regarding the documents and evidence mentioned in the appeal, nor is there any record that these have been delivered in the legally established terms, or the reason why it has not been possible. The proof of compliance with the duty to respond as required by Article 12.4 of the LOPDGDD has also not been demonstrated. Furthermore, the respondent has not responded to the hearing procedure mentioned in Fact Five of this resolution, notified electronically on June 12, 2023, with no record that the respondent accessed the content of the notification within the established timeframe. Consequently, after ten calendar days from its availability, in accordance with the provisions of Article 43.2 of the LPACAP, it is considered rejected. Therefore, in this case, the appeal filed should be upheld..."

SECOND: The respondent was granted a hearing procedure to present any allegations they deemed appropriate within ten working days following the events, and the complaint and the resolution of the reconsideration appeal with a favorable outcome were sent to them again.

The respondent has not submitted any allegations.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

C/ Jorge Juan, 6

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3/7

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including the power to "order the controller or processor to address requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights include access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right relates to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, and the request shall be considered fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

C/ Jorge Juan, 6

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4/7

The exercise of this right may be considered repetitive if it is exercised on more than one occasion within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data involved, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others; that is, the right of access will be granted in such a way that it does not affect third-party data.

The right of access concerning medical records is specifically regulated in Article 18 of Law 41/2002, of November 14, Basic Law Regulating Patient Autonomy and Rights and Obligations in Information and Clinical Documentation (hereinafter LAP), the literal text of which states:

"1. The patient has the right of access, with the reservations indicated in section 3 of this article, to the documentation of the medical record and to obtain a copy of the data contained therein. Health centers will regulate the procedure that guarantees the observance of these rights.

2. The patient's right of access to the medical record may also be exercised by duly accredited representation.

3. The patient's right of access to the documentation of the medical record cannot be exercised to the detriment of the right of third parties to the confidentiality of the data contained therein collected in the therapeutic interest of the patient, nor to the detriment of the right of the professionals involved in its preparation, who may oppose the right of access based on the confidentiality of their subjective notes.

4. Health centers and individual practitioners will only provide access to the medical records of deceased patients to individuals linked to them, for family reasons or otherwise, unless the deceased expressly prohibited it and this is evidenced. In any case, access by a third party to the medical record motivated by a risk to their health will be limited to the pertinent data. Information affecting the privacy of the deceased or the subjective notes of professionals, or that harms third parties, will not be provided."

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5/7

In this regard, it is important to highlight Article 15 of the LPA, which outlines the minimum content of the medical record:

"1. The medical record will include the information deemed essential for the truthful and updated knowledge of the patient's health status. Every patient or user has the right to have a written record, or in the most appropriate technical support, of the information obtained in all their care processes, carried out by the health service both in primary care and specialized care.

2. The main purpose of the medical record will be to facilitate healthcare, documenting all those data that, in the medical opinion, allow for truthful and updated knowledge of the health status.

The minimum content of the medical record will be as follows:

- a) Documentation related to the clinical-statistical sheet.
- b) Admission authorization.
- c) Emergency report.
- d) Anamnesis and physical examination.

- e) Progress notes.
- f) Medical orders.
- g) Consultation sheet.
- h) Reports of complementary examinations.
- i) Informed consent.
- j) Anesthesia report.
- k) Operating room or delivery record.
- l) Pathological anatomy report.
- m) Nursing care progress and planning.
- n) Therapeutic nursing application.
- ñ) Vital signs chart.
- o) Clinical discharge report.

Paragraphs b), c), i), j), k), l), ñ), and o) will only be required in the completion of the medical record when it concerns hospitalization processes or as stipulated.

3. The completion of the medical record, in aspects related to direct patient care, will be the responsibility of the professionals involved in it.

4. The medical record will be maintained with criteria of unity and integration, in each healthcare institution at a minimum, to facilitate the best and most timely knowledge by the professionals of the data of a particular patient in each care process."

Regarding the preservation of the medical record, Article 17 of the LPA, in its points 1 and 5, states: "1. Health centers have the obligation to preserve clinical documentation under conditions that guarantee its proper maintenance and security, even if not...

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6/7

necessarily in the original format, for the proper assistance to the patient during the appropriate time for each case and, at a minimum, five years counted from the date of discharge of each healthcare process (...)

5. Healthcare professionals who carry out their activities individually are responsible for the management and custody of the healthcare documentation they generate."

V

Conclusion

During the processing of this procedure, the entity being claimed has not responded to this Agency, nor does it provide evidence of having addressed what was estimated in the appeal for reconsideration that led to the current claim.

The appeal for reconsideration was upheld because the entity being claimed did not respond to the claimant regarding the documents and evidence indicated in the appeal, without any record that these have been delivered in the legally established terms, or the reason why it was not possible.

This is stated by the claimant in the appeal:

"...Although, as stated in the contested resolution, this party received, on December 20, 2022, a burofax from CLÍNICA DENTAL ALBUFERA S.L. indicating that a complete copy of the clinical documentation was provided, expressly stating that it included "[...] a copy of your clinical history, a copy of the diagnosis and budget. List of treatment sessions. And the details of all interventions, in no way can it be considered that the right of access to the clinical history by CLÍNICA DENTAL ALBUFERA has been attended to, since the only thing that has been delivered to this party is the prior health questionnaire and a brief outline of the appointments..."

We conclude that, since a copy of the necessary communication that must be directed to the claimant informing them about the decision made regarding the request to exercise rights is not attached, and furthermore in this case, the response raised in the appeal for reconsideration that led to this claim, it is appropriate to uphold the claim that originated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for

Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge CLÍNICA DENTAL ALBUFERA, S.L. with NIF B82560574, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the causes for which the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to CLÍNICA DENTAL ALBUFERA, S.L.

In accordance with the provisions established in article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions established in article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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